

Return to:
Charline Johnson
CHARTER TITLE COMPANY
4265 San Felipe, Suite 350
Houston, TX 77027
103800021C

Doc# 2006053076

**AMENDMENT TO RESTRICTIONS AND PARTIAL TRANSFER AND ASSIGNMENT
OF RIGHTS AND FUNCTIONS OF THE DEVELOPER OF
COLUMBIA LAKES SUBDIVISIONS**

THE STATE OF TEXAS §
 §
COUNTY OF BRAZORIA §

KNOW ALL MEN BY THESE PRESENTS:

This Amendment to Restrictions and Partial Transfer and Assignment of Rights and Functions of the Developer of Columbia Lakes Subdivisions executed on this 1st day of September, 2006, by CLT PROPERTIES, LTD., a Texas limited partnership ("Assignor"), and MARZO CLUB, LLC, a Texas limited liability company ("Assignee").

WITNESSETH:

WHEREAS, Columbia Lakes is a subdivision situated in Brazoria County, Texas, according to the plat thereof recorded in Volume 14, Page 37, Volume 14, Page 53, Volume 14, Page 65 and Volume 15, Page 3 of the Plat Records of Brazoria County, Texas (the "Columbia Lakes Subdivision");

WHEREAS, Columbia Lakes Subdivision is subject to certain restrictions according to those certain Restrictions dated July 18, 1972, and recorded in Volume 1128, Page 911 of the Deed Records of Brazoria County, Texas, and amendments thereto recorded in Volume 1131, Page 678, Volume 1137, Page 943 and Volume 1165, Page 945 of the Deed records of Brazoria County, Texas, as amended (the "Restrictions");

WHEREAS, Assignor is the Developer of a portion of Columbia Lakes Subdivision as such term is defined in the Restrictions pursuant to the certain Transfer and Assignment of All Rights and Functions of the Developer of Columbia Lakes Subdivision, Including the Maintenance Fund to CLT Properties, Inc., dated December 16, 1988 and recorded in Volume 625, Page 720 of the Official Records of Brazoria County, Texas;

WHEREAS, Assignor wishes to amend the Restrictions so as to assign all of its right, title, interest, equity and estate as Developer with respect to certain real estate within Columbia Lakes Subdivision listed in Exhibit A attached hereto (the "Property") unto Assignee, a Texas limited liability company; and

WHEREAS, Assignee wishes to accept such assignment of all of the right, title, interest, equity and estate of Assignor as Developer with respect to the Property.

NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS, that Assignor does hereby adopt and promulgate the following amendment to the Restrictions:

1. Assignor hereby transfers and assigns all of its right, title, interest, equity and estate as Developer in the Restrictions with respect to the Property unto Assignee.

2. Assignee hereby accepts from Assignor and agrees to perform all of the rights, obligations and functions of the Developer for the Property.

3. Assignee acknowledges that this Assignment and the rights of Assignee hereunder are expressly subject to any Amendments to Restrictions and Partial Transfer and Assignment of Rights and Functions of the Developer of Columbia Lakes Subdivision made by Assignor heretofore or contemporaneously with this Assignment to Columbia Lakes LLC and Marzo Club, LLC including that certain Amendment to Restrictions and Partial Transfer and Assignment of Rights and Functions of the Developer of Columbia Lakes Subdivision dated August 19, 2005 executed by CLT Properties, Inc. and Columbia Lakes, LLC and recorded in the Official Public Records of Real Property of Brazoria County, Texas under document number 2005049586, and that certain Amendment to Restrictions and Assignment of all Authority and Duties of the Developer of Columbia Lakes Subdivision (Including the Matters Relating to the Architectural Control Committee, Maintenance Fund and the Standby Water and Sewer Charge) dated September 21, 2005 executed by Columbia Lakes, LLC and Columbia Lakes Homeowner's Association and recorded in the Official Public Records of Real Property of Brazoria County, Texas under document number 50508573.

EXECUTED as of the day, month and year first above written.

ASSIGNOR:

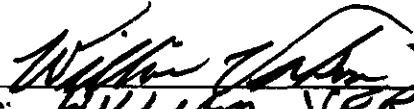
CLT PROPERTIES, LTD.

By: CLT Properties GP, LLC,
a Texas limited liability company
Its: General Partner

By: 
Jerry J. Moore, President

ASSIGNEE:

MARZO CLUB, LLC

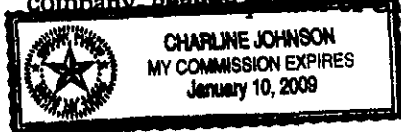
By: 
Name: WILLIAM VERKIN
Title: MANAGER

THE STATE OF TEXAS

§
§
§

COUNTY OF HARRIS

This instrument was acknowledged before me on this the 1st day of September, 2006, by Jerry J. Moore, President of CLT Properties, GP, LLC, a Texas limited liability company, ~~general partner of~~ CLT Properties, Ltd., a Texas limited partnership, on its behalf.



Charline Johnson
Notary Public in and for the State of Texas

THE STATE OF TEXAS

§
§
§

COUNTY OF HARRIS

This instrument was acknowledged before me on this the 1st day of September, 2006, by William Verkin, MANAGER of Marzo Club, LLC, a Texas limited liability company, on its behalf.



Charline Johnson
Notary Public in and for the State of Texas

EXHIBIT A

Tract II:

80.5213 acres, being located in the Martin Varner League, Abstract No. 133, Brazoria County, Texas, said 80.5213 acres being more particularly described on Exhibit A-1 attached hereto.

Tract III:

35.5300 acres, being all of Reserve "A," Columbia Lakes, Section One, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 37 of the Map Records of Brazoria County, Texas.

Tract IV:

8.720 acres, being all of Reserve "B," Columbia Lakes, Section One, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 37 of the Map Records of Brazoria County, Texas.

Tract V:

11.8730 acres, being all of Reserve "A," Columbia Lakes, Section Two, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 53 of the Map Records of Brazoria County, Texas.

Tract VI:

1.9830 acres, being a portion of Reserve "D" and all of Reserves "B" and "C," Columbia Lakes, Section Two, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 53 of the Map Records of Brazoria County, Texas, being more particularly described on Exhibit A-2 attached hereto.

Tract VII:

53.7500 acres, being all of Reserve "F," Columbia Lakes, Section Two, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 53 of the Map Records of Brazoria County, Texas, and all of Reserve "A," Columbia Lakes, Section Three, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 65 of the Map Records of Brazoria County, Texas.

Tract VIII:

0.2660 acres, being all of Reserve "B," Columbia Lakes, Section Three, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 65 of the Map Records of Brazoria County, Texas.

Tract X:

20.246 acres, being all of Reserve "A," Columbia Lakes, Section Four, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 15, Page 4 of the Map Records of Brazoria County, Texas.

Tract XI:

2.6190 acres, being all of Reserve "B," Columbia Lakes, Section Four, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 15, Page 4 of the Map Records of Brazoria County, Texas.

Tract XIV:

0.0419 acres, being all of Reserve "C," Columbia Lakes, Section One, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 37 of the Map Records of Brazoria County, Texas.

Tract XV:

0.143 acres, being all of Reserve "D," Columbia Lakes, Section Three, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 65 of the Map Records of Brazoria County, Texas.

Tract XVI:

0.287 acres, being all of Reserve "E," Columbia Lakes, Section Three, a Subdivision in Brazoria County, Texas, according to the map or plat thereof recorded in Volume 14, Page 65 of the Map Records of Brazoria County, Texas.

EXHIBIT A-1

022206
COLUMBIA LAKES
88.5213 ACRES
BRAZORIA COUNTY, TEXAS

DESCRIPTION
TRACT II

Of 80.5213 acres of land, being out of the Varner Hogg Plantation, as recorded in Volume 1110, Page 10 through 16 of the Deed Records of Brazoria County, Texas, located in the Martin Varner League, Abstract No. 133, Brazoria County, Texas, said 80.5213 acres being more particularly described by notes and bounds as follows, (bearings based on the Plat of Columbia Lakes, Section One, as recorded in Volume 14, Page 37 and 38, of the Plat Records of Brazoria County, Texas);

COMMENCING at a 5/8 inch iron rod found in the Northerly Right-Of-Way line of Freeman Boulevard (60' R.O.W.) at its intersection with the Westerly Right-Of-Way line of County Road 25 (80' R.O.W.);

THENCE South 55° 20' 19" West, along the Northerly Right-Of-Way line of said Freeman Boulevard, a distance of 191.90 feet to a 5/8 inch iron rod found for point of curve to the left;

THENCE continuing along the Northerly Right-Of-Way line of said Freeman Boulevard and along said curve to the left, having a central angle of 50° 13' 20", a radius of 574.00 feet, an arc length of 503.14 feet, a chord bearing of South 33° 12' 51" West, and a chord distance of 487.18 feet to a 5/8 inch iron rod found for point of tangency, said point also being the Southwesterly corner of a call 8.8410 acre tract of land, and the PLACE OF BEGINNING of the herein described tract of land;

THENCE South 08° 06' 11" West, continuing along the Northerly Right-Of-Way line of said Freeman Boulevard, a distance of 847.47 feet to a 5/8 inch iron rod found for point of curve to the right;

THENCE continuing along the Northerly Right-Of-Way line of said Freeman Boulevard and along said curve to the right, having a central angle of 12° 40' 01", a radius of 860.98 feet, an arc length of 190.35 feet, a chord bearing of South 14° 26' 12" West, and a chord distance of 189.96 feet to a 5/8 inch iron rod set for point of tangency;

THENCE South 20° 46' 12" West, continuing along the Northerly Right-Of-Way line of said Freeman Boulevard, a distance of 164.00 feet to a 5/8 inch iron rod set for point of curve to the right;

THENCE continuing along the Northerly Right-Of-Way line of said Freeman Boulevard and along said curve to the right, having a central angle of 42° 39' 57", a radius of 88.02 feet, an arc length of 65.54 feet, a chord bearing of South 42° 06' 11" West, and a chord distance of 64.04 feet to a 5/8 inch iron rod set for point of tangency;

THENCE South 63° 26' 09" West, continuing along the Northerly Right-Of-Way line of said Freeman Boulevard, a distance of 90.01 feet to a 5/8 inch iron rod set for point of curve to the right;

THENCE continuing along the Northerly Right-Of-Way line of said Freeman Boulevard and along said curve to the right, having a central angle of 03° 52' 25", a radius of 2823.63 feet, an arc length of 190.90 feet, a chord bearing of South 65° 22' 22" West and a chord distance of 190.87 feet to a 5/8 inch iron rod found for point of a curve to the left;

THENCE leaving the Northerly Right-Of-Way line of said Freeman Boulevard and along said curve to the left, having a central angle of 08° 44' 05", a radius of 1077.56 feet, an arc length of 164.27 feet, a chord bearing of North 32° 14' 06" West and a chord distance of 164.11 feet to a 5/8 inch iron rod found for point of tangency;

THENCE North 33° 35' 33" East, a distance of 19.84 feet to a 5/8 inch iron rod found for point of a curve to the left;

THENCE along said curve to the left having a central angle of 40° 42' 48", a radius of 115.42 feet, an arc length of 82.01 feet, a chord bearing of South 85° 11' 37" West, and a chord distance of 80.30 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 15° 15' 10" East, a distance of 52.85 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE North 31° 57' 24" East, a distance of 143.53 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE North 12° 46' 20" East, a distance of 81.58 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE North 02° 56' 56" East, a distance of 733.29 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE North 25° 17' 27" East, a distance of 99.49 feet to a point for corner of the herein described tract of land said point being the Southerly edge of a lagoon;

THENCE along the Southerly edge of said lagoon the following courses and distances;

North 83° 31' 58" West, 205.26 feet;
South 20° 44' 05" West, 41.77 feet;
South 05° 46' 19" West, 142.25 feet;
South 34° 46' 25" West, 91.40 feet;
South 60° 55' 07" West, 349.31 feet;
South 82° 19' 54" West, 71.52 feet;
South 49° 07' 41" West, 60.40 feet;
South 35° 25' 17" West, 162.33 feet;

THENCE South 31° 26' 41" East, leaving the Southeasterly edge of said lagoon, a distance of 71.93 to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South 77° 33' 31" East, a distance of 81.52 feet to a 5/8 inch iron rod found for point of curve to the left;

THENCE along said curve to the left having a central angle of 99° 34' 05", a radius of 179.52 feet, an arc length of 311.97 feet, a chord bearing of South 51° 10' 26" East, and a chord distance of 274.17 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South 54° 11' 46" East, a distance of 66.03 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South 66° 47' 40" West, a distance of 206.49 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South 23° 04' 03" East, a distance of 318.82 feet to a 5/8 inch iron rod found for point of curve to the left;

THENCE along said curve to the left, having a central angle of 36° 36' 05", a radius of 207.44 feet, an arc length of 132.52 feet, a chord bearing of South 19° 59' 51" West, and a chord distance of 130.28 feet to a 5/8 inch iron rod found for corner of the herein described tract of land, said point being in the Northerly Right-Of-Way line of said Freeman Boulevard;

THENCE South 72° 32' 52" West, along the Northwesterly Right-Of-Way line of said Freeman Boulevard, a distance of 132.38 feet to a 5/8 inch iron rod set for point of curve to the left;

202004
COLUMBIA LAKES
88.3213 ACRES
BRAZORIA COUNTY, TEXAS

THENCE continuing along the Northerly Right-Of-Way line of said Freeman Boulevard, and along said curve to the left, having a central angle of $10^{\circ} 16' 30''$, a radius of 2280.00 feet, an arc length of 408.88 feet, a chord bearing of South $67^{\circ} 22' 13''$ West, and a chord distance of 408.33 feet to a 5/8 inch iron rod set in the Easterly Right-Of-Way line of Olympia Drive (60' R.O.W.) for corner of the herein described tract of land;

THENCE along the Easterly Right-Of-Way line of said Olympia Drive, leaving the Right-Of-Way line of said Freeman Boulevard, along a curve to the left having a central angle of $69^{\circ} 10' 47''$, a radius of 1890.00 feet, an arc length of 302.81 feet, a chord bearing of North $37^{\circ} 05' 49''$ West, and a chord distance of 302.48 feet to a 5/8 inch iron rod set for point of reverse curve to the right;

THENCE continuing along the Easterly Right-Of-Way line of said Olympia Drive and along said curve to the right, having a central angle of $08^{\circ} 52' 25''$, a radius of 1890.00 feet, an arc length of 292.71 feet, a chord bearing of North $37^{\circ} 11' 34''$ West, and a chord distance of 292.42 feet to a 5/8 inch iron rod set for corner of the herein described tract of land, said point being the Southwesterly corner of Lot 15, Block 45 of Columbia Lakes Section 4, as recorded in Volume 15, Page 4 of the Plat Records of Brazoria County, Texas;

THENCE North $57^{\circ} 10' 27''$ East, along the Easterly line of said Columbia Lakes Section 4, a distance of 127.97 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $32^{\circ} 29' 33''$ West, continuing along the Easterly line of said Columbia Lakes Section 4, a distance of 450.34 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $30^{\circ} 13' 48''$ West, continuing along the Easterly line of said Columbia Lakes Section 4, a distance of 147.27 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $26^{\circ} 44' 48''$ West, continuing along the Easterly line of said Columbia Lakes Section 4, a distance of 147.31 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $22^{\circ} 15' 28''$ West, continuing along the Easterly line of said Columbia Lakes Section 4, a distance of 223.68 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $31^{\circ} 13' 11''$ West, continuing along the Easterly line of said Columbia Lakes Section 4, a distance of 232.43 feet to a 5/8 inch iron rod set in the Easterly Right-Of-Way line of said Olympia Drive for corner of the herein described tract of land, said point being the Northerly corner of Lot 1, Block 45 of said Columbia Lakes Section 4;

THENCE North $19^{\circ} 33' 00''$ East, along the Easterly Right-Of-Way line of said Olympia Drive a distance of 164.71 feet to a 5/8 inch iron rod set for corner of the herein described tract of land, said point being the Southwesterly corner of Columbia Lakes Section 5, as recorded in Volume 15, Pages 61 and 62 of the Plat Records of Brazoria County, Texas and being a point of curve to the right;

THENCE leaving the Easterly Right-Of-Way line of said Olympia Drive along the boundary line of said Columbia Lakes Section 5 and along said curve to the right having a central angle of $28^{\circ} 45' 18''$, a radius of 123.50 feet, an arc length of 61.98 feet, a chord bearing of South $63^{\circ} 25' 01''$ West and a chord distance of 61.33 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $77^{\circ} 47' 40''$ East, continuing along said boundary line a distance of 157.95 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South $43^{\circ} 20' 54''$ East, continuing along said boundary line a distance of 172.27 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

1/28/00
COLUMBIA LAKES
80.8213 ACRES
BRAZORIA COUNTY, TEXAS

THENCE South 49° 58' 38" East, continuing along said boundary line a distance of 421.96 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South 43° 38' 52" East, continuing along said boundary line a distance of 270.84 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South 36° 00' 56" East, continuing along said boundary line a distance of 200.48 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 43° 50' 54" East, continuing along said boundary line a distance of 55.82 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 25° 23' 15" East, continuing along said boundary line a distance of 13.76 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 74° 54' 50" East, continuing along said boundary line a distance of 26.21 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South 38° 53' 05" East, continuing along said boundary line a distance of 26.34 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 55° 39' 28" East, continuing along said boundary line a distance of 40.21 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 36° 09' 42" East, continuing along said boundary line a distance of 27.56 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 21° 42' 00" East, continuing along said boundary line a distance of 14.46 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 03° 01' 43" West, continuing along said boundary line a distance of 34.44 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 16° 33' 48" West, continuing along said boundary line a distance of 34.07 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 38° 57' 54" West, continuing along said boundary line a distance of 53.34 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 32° 43' 34" West, continuing along said boundary line a distance of 76.01 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 39° 35' 24" West, continuing along said boundary line a distance of 135.23 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 42° 38' 34" West, continuing along said boundary line a distance of 214.87 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 37° 59' 18" West, continuing along said boundary line a distance of 214.60 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North 41° 20' 42" West, continuing along said boundary line a distance of 285.71 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South $54^{\circ} 35' 54''$ West, continuing along said boundary line a distance of 202.50 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South $77^{\circ} 47' 40''$ West, continuing along said boundary line a distance of 137.12 feet to a 5/8 inch iron rod set of curve to the right;

THENCE continuing along said boundary line and along said curve to the right having a central angle of $81^{\circ} 22' 45''$, a radius of 100.00 feet, an arc length of 142.03 feet, a chord bearing of North $61^{\circ} 33' 55''$ West, and a chord distance of 130.39 feet to a 5/8 inch iron rod found in the Southerly Right-Of-Way line of said Olympia Drive to a 5/8 inch iron rod set for point of curve to the left;

THENCE along the Right-of-Way line of said Olympia Drive and along said curve to the left having a central angle of $13^{\circ} 17' 48''$, a radius of 860.00 feet, an arc length of 199.58 feet, a chord bearing of North $07^{\circ} 05' 54''$ East, and a chord distance of 199.13 feet to a 5/8 inch iron rod set for point of reverse curve to the right;

THENCE continuing along the Right-of-Way line of said Olympia Drive and along said curve to the right having a central angle of $45^{\circ} 33' 00''$, a radius of 377.36 feet, an arc length of 300.00 feet, a chord bearing of North $22^{\circ} 48' 02''$ East, and a chord distance of 292.16 feet to a 5/8 inch iron rod set for corner of the herein described tract of land said point being the Northwestern corner of Block 37 of said Columbia Lakes Section 4;

THENCE South $35^{\circ} 15' 00''$ East, along the Westerly line of said Block 37, a distance of 120.69 feet to a 5/8 inch iron rod set for corner of the herein described tract of land, said point being the Southwesterly corner of said Block 37;

THENCE North $54^{\circ} 45' 00''$ East, along the Southerly line of said Block 37 a distance of 450.00 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE North $59^{\circ} 38' 32''$ East, continuing along the Southerly line of said Block 37 a distance of 131.91 feet to a 5/8 inch iron rod set for corner of the herein described tract of land, said point being the Southeasterly corner of said Block 37;

THENCE North $00^{\circ} 27' 00''$ East, along the Easterly line of said Block 37, a distance of 100.00 feet to a 5/8 inch iron rod set in the Southerly Right-Of-Way line of said Olympia Drive for corner of the herein described tract of land, said point being the Northeasterly corner of said Block 37;

THENCE South $89^{\circ} 33' 00''$ East, along the Southerly Right-Of-Way line of said Olympia Drive a distance of 231.85 feet to a 5/8 inch iron rod set for point of curve to the left;

THENCE continuing the Southerly Right-Of-Way line of said Olympia Drive and along said curve to the left having a central angle of $19^{\circ} 18' 00''$, a radius of 330.00 feet, an arc length of 111.16 feet, a chord bearing of North $80^{\circ} 48' 00''$ East, and a chord distance of 110.64 feet to a 5/8 inch iron rod set for point of tangency;

THENCE North $71^{\circ} 09' 00''$ East, continuing along the Southerly Right-Of-Way line of said Olympia Drive a distance of 255.00 feet to a 5/8 inch iron rod set for point of curve to the right;

THENCE continuing along the Southerly Right-Of-Way line of said Olympia Drive and along said curve to the right having a central angle of $29^{\circ} 00' 00''$, a radius of 270.00 feet, an arc length of 136.66 feet, a chord bearing of North $85^{\circ} 39' 00''$ East, and a chord distance of 135.21 feet to a 5/8 inch iron rod set for point of reverse curve to the left;

80.5213
COLUMBIA LAKES
80.5213 ACRES
BRAZORIA COUNTY, TEXAS

THENCE continuing along the Southerly Right-Of-Way line of said Olympia Drive and along said curve to the left having a central angle of $09^{\circ} 42' 04''$, a radius of 289.80 feet, an arc length of 49.06 feet, a chord bearing of South $84^{\circ} 42' 09''$ East, and a chord distance of 49.00 feet to a 5/8 inch iron rod set for point of tangency;

THENCE South $89^{\circ} 33' 00''$ East, continuing along the Southerly Right-Of-Way line of said Olympia Drive passing at a distance of 186.17 feet a 5/8 inch iron rod found for the place of commencing of the 1.5118 acre save and except tract described herein, and continuing for a total distance of 322.18 feet to a 5/8 inch iron rod found for corner of the herein described tract of land, said point being the Northwesterly corner of said call 8.8410 acre tract of land;

THENCE South $18^{\circ} 42' 21''$ East, leaving the Southerly Right-Of-Way line of said Olympia Drive, along the Westerly line of said call 8.8410 acre tract of land, a distance of 346.64 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South $16^{\circ} 26' 00''$ East, continuing along the Westerly line of said call 8.8410 acre tract of land a distance of 306.43 feet to a 5/8 inch iron rod set for corner of the herein described tract of land;

THENCE South $14^{\circ} 20' 15''$ East, continuing along the Westerly line of said call 8.8410 acre tract of land a distance of 283.29 feet to the PLACE OF BEGINNING of the herein described tract of land, save and except a 1.5118 acre tract of land more particularly describe as follows:

1.5118 acres or 65,854 square feet of land, being out of the Varner Hogg Plantation, as recorded in Volume 1110, Page 10 through 16 of the Deed Records of Brazoria County, Texas, located in the Martin Varner League, Abstract No. 133, Brazoria County, Texas, said 1.5118 acres being more particularly described by metes and bounds as follows, (bearings based on the Plat of Columbia Lakes, Section One, as recorded in Volume 14, Page 37 and 38, of the Plat Records of Brazoria County, Texas);

COMMENCING at a 5/8 inch iron rod found in the Southerly Right-Of-Way line of Olympia Drive, (60' R.O.W.), said point bearing North $89^{\circ} 33' 00''$ West a distance of 136.01 feet from the Northeastly corner of the call 80.5213 acre tract described above;

THENCE leaving the Southerly Right-Of-Way line of said Olympia Drive along said curve to the right, having a central angle of $32^{\circ} 12' 16''$, a radius of 359.82 feet, an arc length of 202.25 feet, a chord bearing of South $18^{\circ} 31' 51''$ West, and a chord distance of 199.59 feet to a 5/8 inch iron rod found for point of tangency;

THENCE South $26^{\circ} 34' 21''$ West, a distance of 25.02 feet to a 5/8 inch iron rod found for corner;

THENCE South $12^{\circ} 01' 50''$ East, a distance of 415.02 feet to a 5/8 inch iron rod found for corner;

THENCE South $32^{\circ} 46' 23''$ East, a distance of 16.46 feet to a 5/8 inch iron rod found for the PLACE OF BEGINNING of the herein described tract of land;

THENCE South $32^{\circ} 46' 23''$ East, a distance of 113.42 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South $49^{\circ} 57' 32''$ West, a distance of 135.95 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE South $12^{\circ} 09' 28''$ East, a distance of 90.83 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

SECTION
COLUMBIA LAKES
80.5213 ACRES
BRAZORIA COUNTY, TEXAS

THENCE South $77^{\circ} 45' 26''$ West, a distance of 147.35 feet to a $5/8$ inch iron rod found for corner of the herein described tract of land;

THENCE North $12^{\circ} 11' 38''$ West, a distance of 91.29 feet to a $5/8$ inch iron rod found for corner of the herein described tract of land, said point being the beginning of a curve to the left;

THENCE along said curve to the left, having a central angle of $53^{\circ} 51' 34''$, a radius of 47.39 feet, an arc length of 44.55 feet, a chord bearing of North $45^{\circ} 31' 03''$ West, and a chord distance of 42.93 feet to a $5/8$ inch iron rod found for corner of the herein described tract of land, said point being the beginning of a curve to the left;

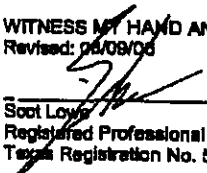
THENCE along said curve to the left, having a central angle of $06^{\circ} 46' 21''$, a radius of 387.41 feet, an arc length of 45.79 feet, a chord bearing of North $75^{\circ} 50' 00''$ West, and a chord distance of 45.77 feet to a $5/8$ inch iron rod found for corner of the herein described tract of land, said point being the beginning of a curve to the right;

THENCE along said curve to the right, having a central angle of $25^{\circ} 41' 30''$, a radius of 140.87 feet, an arc length of 63.17 feet, a chord bearing of North $28^{\circ} 28' 20''$ West, and a chord distance of 62.64 feet to a $5/8$ inch iron rod found for corner said point being the beginning of a curve to the right;

THENCE along said curve to the right, having a central angle of $19^{\circ} 13' 15''$, a radius of 199.52 feet, an arc length of 66.93 feet, a chord bearing of North $03^{\circ} 25' 26''$ East, and a chord distance of 66.62 feet to a $5/8$ inch iron rod found for corner of the herein described tract of land;

THENCE North $77^{\circ} 53' 06''$ East, a distance of 287.94 feet to the PLACE OF BEGINNING of the herein described tract of land and containing within these calls 80.5213 acres of land.

WITNESS MY HAND AND SEAL THIS THE 17th DAY OF JULY, 2008
Revised: 08/09/08 Updated: 08/24/08


Scot Lowe
Registered Professional Land Surveyor
Texas Registration No. 5007

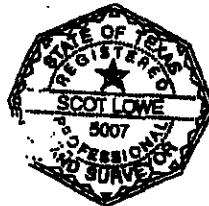


EXHIBIT A-2

8/25/88
COLUMBIA LAKES
1.9830 ACRES
BRAZORIA COUNTY, TEXAS

DESCRIPTION
TRACT VI

Of 1.9830 acres of land being a portion of Reserve "D" and all of Reserve "B" and Reserve "C", Columbia Lakes Section 2, as recorded in Volume 14, Pages 53 and 54 of the Plat Records of Brazoria County, Texas being located in the Martin Varner League, Abstract No. 133, Brazoria County, Texas, said 1.9830 acres of land being more particularly described by metes and bounds as follows:

BEGINNING at a 5/8 inch iron rod found for the Southeasterly corner of said Reserve "D"; said point being in the Northerly Right-Of-Way line of Edgewater Drive (60' R.O.W.) and the Westerly Right-Of-Way line of Lakewood Drive (60' R.O.W.);

THENCE South 59°01'57" West, along the Southerly line of said Reserve "D" and the Northerly Right-Of-Way line of said Edgewater Drive, a distance of 56.08 feet to a 5/8 inch iron rod found for corner of the herein described tract of land;

THENCE North 30°58'03" West leaving the Northerly Right-Of-Way line of said Edgewater Drive, a distance of 77.25 feet to an "X" set in concrete for corner of the herein described tract of land;

THENCE South 59°01'57" West, a distance of 93.32 feet to a 5/8 inch iron rod found for corner;

THENCE South 30°58'03" East, passing at a distance of 45.60 the common Southerly corner of said Reserve "D" and said Reserve "C" and continuing for a total distance of 240.60 feet to a 5/8 inch iron rod set for corner, said point being in the Northerly Right-Of-Way line of said Edgewater Drive and being the Southwesterly corner of said Reserve "C" and the Southeasterly corner of Lot 27, Block 15 of said Columbia Lakes Section 2;

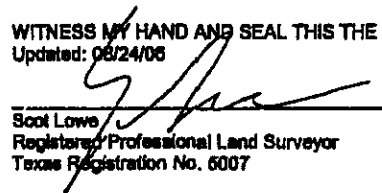
THENCE North 30°58'03" West, leaving the Northerly Right-Of-Way line of said Edgewater Drive and along the common line of said Reserve "C" and said Lot 27, passing at a distance of 120.00 feet the Northwesterly corner of said Reserve "C" and the Southwesterly corner of said Reserve "B", and continuing for a total distance of 240.00 feet to a 5/8 inch iron rod set for corner of the herein described tract of land being in the Southerly Right-Of-Way line of Forest Park Drive (60' R.O.W.);

THENCE North 59°01'57" East, along the Northerly line of said Reserve "B" same being the Southerly Right-Of-Way line of said Forest Park Drive, passing at a distance of 195.00 feet the common Northerly corner of said Reserve "B" and said Reserve "D", and continuing for a total distance of 390.00 feet to a 5/8 inch iron rod found for corner of the herein described tract of land, said point being the Northwesterly corner of said Reserve "D" and being in the Westerly Right-Of-Way line of said Lakewood Drive;

072504
COLUMBIA LAKES
1.9830 ACRES
BRAZORIA COUNTY, TEXAS

THENCE South 30°58'03" East, along the Easterly line of said Reserve "D" same being the Westerly Right-Of-Way line of said Lakewood Drive, a distance of 240.00 feet to the PLACE OF BEGINNING of the herein described tract and containing within these calls 1.9830 acres of land.

WITNESS MY HAND AND SEAL THIS THE 17th DAY OF JULY, 2006.
Updated: 08/24/06


Scot Lowe
Registered Professional Land Surveyor
Texas Registration No. 6007



Doc# 2006053076
Pages 14
09/05/2006 4:06PM
Official Records of
BRAZORIA COUNTY
JOYCE HUDMAN
COUNTY CLERK
Fees \$68.00

